

24LBCV02799 24LBCV02799

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-06-30

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LB%20%2CS27%2C06%2F30%2F2026

Source SHA-256: bcd772946cd4dc320dd680b9e259552e6af6cf08d151f16814033a09339f43af

Case Number: 24LBCV02799 Hearing Date: June 30, 2026 Dept: S27

On 10/03/25, Defendant filed a motion for summary adjudication of Plaintiff's fifth cause of action for fraud – concealment, setting it for hearing on 1/13/26. On 10/27/25, the Court granted Defendant's ex parte application to continue the trial date to permit the MSA hearing to go forward at least thirty days prior to trial.

On 1/13/26, having received no opposition to the motion, the Court found the motion not deficient on its face and granted the motion, relying on *Mandell-Brown v. Novo Nordisk Inc.* (2025) 109 Cal.App.5th 478, 508.

On 1/30/26, Plaintiff filed this motion for relief from failure to file timely opposition papers, relying on CCP §473(b). The motion is denied for several reasons. First and foremost, as Defendant correctly notes in opposition to the motion, the motion is not accompanied by a full and complete proposed opposition to the summary judgment motion, which is a prerequisite to relief under §473(b). Second, Plaintiff's motion indicates Plaintiff's counsel only learned of their mistake upon the issuance of the Court's January 13, 2026 order granting the MSA. Motion, page 2, lines 22-23. This is nonsensical, as Plaintiff appeared at the hearing on the MSA. How could Counsel have appeared if Counsel did not know the motion was scheduled? Third, Plaintiff has made absolutely no showing that her fifth cause of action for fraudulent concealment has merit, and the Court has repeatedly found the economic loss rule bars these claims in lemon law cases.

The motion is denied. The 7/20/26 trial date remains firm.

Plaintiff is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.